I-HUB FOR ROBOTICS AND AUTONOMOUS SYSTEMS INNOVATION FOUNDATION

TENDERS FOR

THE SUPPLY OF GPU-EDGE-CLOUD-SYSTEM

SECTION 1. INVITATION FOR BIDS / NIT

Date: 19th February 2025

IFT No.: I-HUBRASIF-ARTPARK/Purchase/2025/01

1. The Director-Executive, I-HUB FOR ROBOTICS AND AUTONOMOUS SYSTEMS INNOVATION FOUNDATION, IISc Bengaluru, India invites sealed bids from manufacturers, their distributors and Indian Agent of Foreign principals, if any, for purchase of items listed below.

Sl. No.		Description of items	Quantity	Single/ double bid	Bid security (EMD)
	I-HUBRASIF -ARTPARK/Purchase/2025/01	GPU-EDGE-CLOUD-SYSTEM	1 no	Two cover System	

1. Interested Bidders may obtain further information from the office of I-HUB FOR ROBOTICS,AND AUTONOMOUS SYSTEMS INNOVATION FOUNDATION, IISc. Bengaluru, India
2. The bidding documents can be downloaded directly from our website office@artpark.in free of cost. The bids must reach this office on or before 12th March 2025 up to 17.00 hours (IST) and for any technical clarification the bidders can reach our office (office@artpark.in) till 26th February 2025. The bids shall be opened after 12th March 2025 .

3. A Pre-bid Conference will be held on 27th February 2025 in the premises of I-HUB FOR ROBOTICS AND AUTONOMOUS SYSTEMS INNOVATION FOUNDATION at its ArtGarage Facility in HMT Jalahally campus 11.30 am (IST)onwards.

4. All bids must be accompanied by a bid security as specified above and must be delivered to the above office at the date and time indicated above. Bids will be opened in the presence of Bidders' representatives who choose to attend on the specified date and time. In the event of the date specified for bid receipt and opening being declared as a closed holiday for the purchaser's office, the due date

for submission of bids and opening of bids will be the following working day at the appointed time. Other details can be seen in the tender documents.

5. The Director-Executive, I-HUB FOR ROBOTICS AND AUTONOMOUS SYSTEMS INNOVATION FOUNDATION reserves the right to accept any or all tenders either in part or in full or to split the order without assigning any reasons there for.

DIRECTOR-Executive

I-HUB FOR ROBOTICS AND AUTONOMOUS SYSTEMS INNOVATION FOUNDATION

INTRODUCTION

The I-HUB FOR ROBOTICS AND AUTONOMOUS SYSTEMS INNOVATION FOUNDATION (henceforth referred to as the Purchaser) located at Ground Floor, SID Entrepreneurship Building, Indian Institute of Science (IISc), Bengaluru - 560 012, is planning to set up a GPU-EDGE-CLOUD-SYSTEM. In accordance with the specialised nature of planned experiments, the Purchaser has identified the OEM equipment that needs to be procured for the system. Bids are invited from bidders in two-cover format for an equipment, along with the management software, as per the bill of quantity in Annexure II .

SCOPE OF WORK

The bidders have to ensure that the equipment and support services are capable to meet all the technical requirements

The solution proposed by the bidder is expected to be a total turn-key solution meeting all the stipulated requirements including supply, commissioning, configuration of the management software. The bid is also expected to include three years of OEM support.

The proposed GPU-EDGE-CLOUD-SYSTEM should be operable at ArtGarage @ Artpark. The requirements of power and cooling will be the responsibility of the Purchaser. The bidders have to ensure that the resources (personnel) allocated for each one of the above tasks are competent and capable to meet all the technical requirements in order to ensure that the broad objective of delivery of services as per expectations is fully met.

BIDDER'S ELIGIBILITY CRITERIA

1) Bidder should be an OEM or its authorized vendor. The bidder should submit documentary proof that he is authorized by the OEM to supply the equipment.
2) The quotations should be on FOR-I-HUB FOR ROBOTICS AND AUTONOMOUS SYSTEMS INNOVATION FOUNDATION, Bengaluru basis in INR only
3) The Quote should come only from the Indian Original Equipment Manufacturer (OEM) or their Indian Authorized Distributor (AD).
4) Original Invoice, Original Warranty Certificate, Original Test Reports should be produced for all imported items from OEM (Original Equipment Manufacturer) at the time of supply of the equipment.

5) OEM & Authorized Partner should have a Sales and support office in the Country. A self certified document in support of this must be enclosed.

6) OEM or Authorized Partner should have a service and support office in Bengaluru. A self certified document in support of this must be enclosed.

7) The warranty provided by the Bidder should have a back-to-back arrangement with the OEM. The declaration should be part of a Letter of Authorization and signed by a competent authority at the OEM.

8) The Bidder should be ISO 9001 certified. A copy of the ISO Certificate should be enclosed.

9) The Bidder should have a support centre with a minimum of 3 relevant support engineers. A self-certified document in support of this must be enclosed.

10) The vendor/OEM should be able to provide 24x7 NOC & Tele support of their own if required by I-HUB FOR ROBOTICS AND AUTONOMOUS SYSTEMS INNOVATION FOUNDATION (IISc) at agreed terms. A self-certified document in support of this must be enclosed.

11) Bidders shall have to submit audited accounts (Balance sheet profit and loss account) of the last three financial years. Audited statement must be signed and stamped by a qualified chartered accountant.

12) Bidders must submit up to date sale tax and GST clearance certificate.

13) The bidder should have a track record of having previously supplied similar equipment to Central/State Government or other reputed firms. Purchase order copies of previous installations are required along with customer contact details.

14) If the bidder have supplied and installed similar items to any govt. institution/organization in India in the last one year, they should provide the details.

15) Bidders should include necessary documents for establishing this with necessary proof in terms of POS and customer contact details.

16) In the technical bid, the bidder should clearly demarcate the responsibilities between the OEM and the bidder. Complete details of the same have to be submitted in the technical bid. However, for complete

supply, installation, and post-installation service, the bidder shall be responsible.

17) The technically qualified bidders should be in a position to demonstrate their equipment and software capabilities through technical presentation and video.

18) The bidder has to provide an undertaking on the official letter-head of the company that it has not been blacklisted by any department or undertaking of the Central or State Government department/Public Sector Undertakings (PSU)/Public Sector Enterprises (PSE)/ Banks in India.

19) The bidder (along with the OEM) should be in a position to demonstrate their competence and capability (with a sales office and service centre based in Bengaluru), as a team, to deliver all the services expected during the contract period.

20) The Bidder should belong to either Class-1 or Class-2 suppliers distinguished by their "local content" as defined by recent edits to GFR. They should mention clearly which class they belong to in the cover letter.

21) (a) Class-1 supplier: Goods and services should have local content of equal to or more than 50%.

(b) Class-2 supplier: Goods and services should have local content of equal to or more than 20 % and less than 50%.

22) Bidders offering imported products will fall under the category of non-local suppliers. They cannot claim themselves as Class-1 local suppliers/Class-2 local suppliers by claiming the services such as transportation, insurance, installation, commissioning, training, and other sales service support like AMC/CMC, etc., as local value addition.

23) Purchase preference as defined by the recent edits to GFR (within the "margin of purchase preference") will be given to the Class-1 supplier.

24) MSMEs can seek an exemption to some qualification criteria. I-HUB FOR ROBOTICS AND AUTONOMOUS SYSTEMS INNOVATION FOUNDATION follows GFR2017 for such details.

Submission of BID

1) The offer should be in the two-bid system in a two-cover format – i.e., "Technical Bid" and "Commercial Bid".
2) Technical bids must contain only the technical details. This part must not include the price offered by the bidder. The price must be mentioned only in the commercial bid part.
3) Late or delayed tenders shall be summarily rejected. Bids sent through email/fax or submitted in hard copy format without cover will not be accepted and such bids will be treated as non-responsive bids.
4) Bidder(s) must submit their PAN issued by Income Tax authorities, TIN, and a copy of the PAN / TIN with the bid.
5) Bid document(s) and all enclosures must contain the name and address of the bidder, as well as the signature and seal of the authorised representative of the bidder.
6) The Bank/RTGS details on the letter-head of the bidder(s) must be submitted along with the tenders (technical bid). A copy of the cancelled cheque should also be attached.

Details of the Bidder

1. Name of the bidder
2. Nature of the bidder (Attach attested copy of certificate of incorporation/partnership deed)
3. Registration No/ Trade License (attach attested copy)
4. Registered Office Address
5. Address for communication
6. Contact person – Name and Designation
7. Telephone No
8. Email ID
9. Website
10. PAN (attach copy)
11. GST No. (attach copy)

TECHNICAL BID

The Technical bid should contain the following:

1) Overall compliance statement indicating adherence to each and every clause in the terms and conditions, as per AnnexureI & the in the eligibility criteria above.
2) Detailed technical description of the products and datasheets for the specific configuration options quoted.
3) A letter from the OEM authorizing the bidder to bid for this tender.
4) Terms for licensing (perpetual or linked with support contract) and service/support for each hardware/software component. Terms for software usage and update should be unambiguously stated.
5) A copy of the masked commercial bid of the bill-of-materials.
6) It is mandatory that the BoQ adequately covers all hardware/software necessary for satisfactory operation of the equipment. The bid has to quote for the entire solution as per BoQ, and partial offers will not be accepted.

   The bidder is required to indicate, by filling-in Annexure II, whether each line item in the BoQ is quoted

COMMERCIAL BID

1) The commercial bid should contain details of the prices for each of the subsystems (including the software licenses), clearly mentioning the rate and the quantity.
2) The commercial bid should contain the unit rate (in Indian Rupees) and the quantity for each one of the line items as well as the total bid price (in Indian Rupees).
3) Price must be offered only in the prescribed priced bid format for all the line items.
4) Price should include all discounts applicable to research Institution given that the equipment will be used for research purposes.
5) Price must be quoted against each line item in the prescribed BoQ format as per Annexure II. Bid should be valid for 60 days from the date of submission.
6) This Commercial bid is lease based procurement of “GPU-Edge-Cloud System” and should be for an OPEX model. ARTPARK has fixed INR 4Cr upfront down payment post successful & acceptance tested installation of the system followed by quarterly payments at end of each quarter thereafter, for 12 quarters.

7) Commercial bid should indicate the residual fee of not more than 1INR to fully procure the system at the end of the OPEX period.

8) Commercial bid should indicate the total costs incurred over the 12 quarter period (3 years).

Commercial Terms and Conditions

1) The commercial bid should contain, among other things, payment terms, warranty, installation,commissioning & maintenance charges for the period of the contract, ie, 12 quarters. The initial charge will be paid after successful supply, installation and acceptance. Quarterly charges will be paid based upon satisfactory support provided by the bidder as per the clauses in the section "Installation, Training and Support" section.

2) Vendors should quote the prices for imported items on 'DDP' terms.

3) Applicable Withholding tax, if applicable, will be deducted from the PO amount.

4) Price should be quoted per unit and the total amount for the required quantity should also be quoted.

5) As per GFR, no advance payment can be made to domestic vendors, unless an equal amount of bank guarantee is provided.

6) 100% payment as per PO will be released against delivery, inspection, successful installation, commissioning, and acceptance of the equipment at I-HUB FOR ROBOTICS AND AUTONOMOUS SYSTEMS INNOVATION FOUNDATION Bengaluru in good and functional condition and to the entire satisfaction of the Purchaser.

7) The total solution as per the agreed bill of materials must be supplied within 4 weeks after receiving a firm PO from I-HUB FOR ROBOTICS AND AUTONOMOUS SYSTEMS INNOVATION FOUNDATION The installation, commissioning and acceptance must be completed within a week after supply of the equipment.

8) Payment will be subject to deduction of TDS as per rules / laws and any other deduction as per PO terms.

9) Liquidated Damage: As time is the essence for this procurement, hence the ordered materials are required to be delivered and installed in all respects within the stipulated period in the purchase order failing which penalty for late delivery

and installation will be imposed at the rate 1% of the total order value per week or part thereof for the delayed period subject to maximum of 10% of the total order value and this liquidated damage will be deducted during the payment of the invoice / bill of the supplier. Earliest / expected delivery period should be clearly indicated in the technical bid.

Acceptance Criteria:

1. The systems should be installed, commissioned and demonstrated for the components and parameters specified in the bid and P.O by the successful bidder, for the solution to be accepted.
2. It is to be noted that a maximum of two weeks will be available (after Installation & Commissioning) to the bidder to conform to this acceptance test criterion set out.
3. Any delay in commissioning or conformance to the acceptance beyond the stipulated time will result in extending the warranty: Each day of delay would result in 3 additional days of warranty.
4. This penalty clause is only applicable for solutions which are considered as technically meeting the requirements, as evaluated by the technical committee. The clause cannot therefore be used as an argument to qualify any solution, which the technical committee considers as not meeting the requirements

1. Installation, Training and Documentation, Support

Contract

1.1 Installation

The total solution as per the agreed bill of materials must be supplied within 4 weeks after receiving a firm PO from I-HUB FOR ROBOTICS AND AUTONOMOUS SYSTEMS INNOVATION FOUNDATION. The installation, commissioning and acceptance must be completed within a week after supply of the equipment.

1.2 Training and Documentation (If applicable)

Appropriate number of training sessions for I-HUB FOR ROBOTICS AND AUTONOMOUS SYSTEMS INNOVATION FOUNDATION technical staff for effective operation and management of the equipment, including the configuration/usage of the management software supplied shall be held.

Documentation (manuals, operating instructions, etc.) for all hardware, software, and services offered (in printed/digital format) shall be provided to the Purchaser.

A technical report on the hardware and (management) software configuration will be a prerequisite condition for granting acceptance from the Purchaser.

1.3 Warranty and OEM Support Contract

1) The bidder/OEM shall be fully responsible for the warranty period.
2) Preventive maintenance and repairs of the components supplied by the bidder are the responsibilities of the bidder.
3) OEM support contract should be for a period of three years from the date of acceptance of the equipment for both hardware and software.
4) While the support contract is valid, the bidder/OEM shall attend to all the hardware and/or software problems on site and shall replace the defective parts at no extra cost to the purchaser within 5 working days after reporting the issue.
5) All critical security updates must be promptly applied by the bidder/OEM personnel. The purchaser should be intimated about all non-critical security updates within a week of their release by the OEM. All feature update releases for software must be made available to the Purchaser during the validity period of the support contract.
6) All software tools should also be provided in CD/USB format and the purchaser shall be permitted to make at least 2 copies of the software tools /updates for emergency recovery.
7) Performance security guarantee through any Nationalised bank in India for 5% of the total purchase order amount shall be given by the selected bidder to the Purchaser. Format of the performance security guarantee will be given by the purchaser at the time of issuing the purchase order.
8) OEM/bidder shall clearly specify the conditions over which the service obligations will be void. Detailed documents regarding warranty conditions and applicability should be submitted along with a bid with a declaration of accepting the warranty conditions of the purchaser stated at above clause ----------.

Additional Guidelines

1) Regarding any clarification on technical aspects or any other issue, a pre-bid meeting will be held on a date and time as mentioned in this tender document at I-HUB FOR ROBOTICS AND AUTONOMOUS SYSTEMS INNOVATION FOUNDATION. Queries, if any, may only be submitted to the email ID office@artpark.in before the pre bid meeting. No queries will be entertained after the pre-bid meeting.

   The changes in the tender, if any, made after pre-bid meeting, would be published on the ARTPARK website www.artpark.in. Any kind of corrigendum/ addendum will become an integral part of this tender document.

2) Delayed and/or incomplete tenders are liable to be rejected.

3) The technical bid should not contain any price information. Non-conformance will result in disqualification.

4) All pages of the technical bid should be duly signed by the bidder.

5) The bidders are requested to go through the terms and conditions detailed in this document, before filling out the tender. Agreeing to the terms and conditions of the tender document (by signing all pages of the copy of the tender document) is a mandatory requirement.

6) Award criteria: the two-cover system will be followed; the technical and commercial bids will be opened:

   a. Commercial bids of technically qualified bids alone will be taken up for further processing. Decision of I-HUB FOR ROBOTICS AND AUTONOMOUS SYSTEMS INNOVATION FOUNDATION will be final and binding.

   b. Subject to Clause ITT Clause 24, I-HUB FOR ROBOTICS AND AUTONOMOUS SYSTEMS INNOVATION FOUNDATION will award the contract to the bidder whose technical bid has been determined by the Purchase Committee to meet technical evaluation criteria, and who has offered the lowest evaluated bid price.

7) I-HUB FOR ROBOTICS AND AUTONOMOUS SYSTEMS INNOVATION FOUNDATION reserves the right to accept or reject any bid, and to cancel the tender process and reject all bids, at any time prior to the award of contract, without thereby incurring any liability to the affected bidder(s) or any obligation to inform the affected bidder(s) of the grounds for the I-HUB FOR ROBOTICS AND AUTONOMOUS SYSTEMS INNOVATION FOUNDATION's action.

8) The Director, I-HUB FOR ROBOTICS AND AUTONOMOUS SYSTEMS INNOVATION FOUNDATION, SID Entrepreneurship Building, IISC, Bengaluru-12 reserves the right to modify the technical specifications or the required quantity at any time.

9) I-HUB FOR ROBOTICS AND AUTONOMOUS SYSTEMS INNOVATION FOUNDATION will place the purchase order only on the successful bidder. Courts of Bengaluru/New Delhi shall have exclusive jurisdiction over matters covered in this tender.

10) The bid must be addressed to "The Director-Executive, I-HUB FOR ROBOTICS AND AUTONOMOUS SYSTEMS INNOVATION FOUNDATION Purchase Committee" and the hard copy should be submitted via post or in person to the Office of the ARTPARK, Ground Floor, SID Entrepreneurship Building, Indian Institute of Science, Bengaluru – 560012".

11) Contact: any queries or requests for clarification must be directed (through email only) to office@artpark.in

Important Dates

Release of the tender document on I-HUB website	19th February 2025, 5pm IST
Submission of queries (for pre-bid clarification) by email to office@artpark.in	26th February 2024, 5pm IST
Pre-bid clarification meeting online over MS Teams (exact date/time and meeting invite to be intimated by email to potential bidders submitting pre-bid queries)	27st February 2025, 5pm IST
Release of corrigendum (if needed)	28th February 2024, 5pm IST
Deadline for submission of bids	12th March 2025, 5pm IST
Opening of technical bids	Will be decided later
Technical presentations	If needed, will be communicated later
Opening of price bids (price bids of only those bidders, whose technical bid is shortlisted, will be opened)	Exact date and time will be communicated to technically qualified bidders by email.

SECTION II: INSTRUCTIONS TO TENDERERS

A. Introduction

1. Eligible Tenderers

1.1. Bidders should not be associated, or have been associated in the past, directly or indirectly, with a firm or any of its affiliates which have been engaged by the Purchaser to provide consulting services for the preparation of the design, specifications, and other documents to be used for the procurement of the goods to be purchased under this Invitation of Bids.

1.2 Bidders shall not be under a declaration of ineligibility for corrupt and fraudulent practices The purchaser requires that the bidders' suppliers and contractors observe the highest standard of ethics during the procurement and execution of such contracts.

1.3 The purchaser will reject a proposal for award if it determines that the Bidder recommended for award has, directly or through an agent, engaged in corrupt, fraudulent, collusive or coercive practices in competing for the Contract in question.

B. The Tender Documents

2. Contents of Tender Documents

2.1 The goods required, tendering procedures and contract terms are prescribed in the tender documents. In addition to the Invitation for Tenders, the tender documents include:

(a) Instruction to Tenderers (ITT) :

b) General Conditions of Contract (GCC):

(c) Special Conditions of Contract (SCC):

(d) Schedule of Requirements:

(e) Technical Specifications:

(f) Tender Form and Price Schedules:

(g) Earnest money deposit Form:

(h) Contract Form:

(i) Performance Security Form:

(k) Manufacturer's Authorization/Guarantee Form

2.2 The Tenderer is expected to examine all instructions, forms, terms, and specifications in the tender documents. Failure to furnish all information required by the tender documents or submission of a tender not substantially responsive to the tender documents in every respect will be at the Tenderer's risk and may result in rejection of its tender.

3. Amendment of Tender Documents

3.1 At any time prior to the deadline for submission of tenders, the Purchaser may, for any reason, whether at its own initiative or otherwise, modify the tender documents by amendment.

3.2 All prospective tenderers who have received the tender documents will be notified of the amendment in writing or by cable or by fax, and will be binding on them.

3.3 In order to allow prospective tenderers reasonable time in which to take the amendment into account in preparing their tenders, the Purchaser, at its discretion, may extend the deadline for the submission of tenders.

C. Preparation of Tenders

4. Language of Tender

4.1 The tender prepared by the Tenderer, as well as all correspondence and documents relating to the tender exchanged by the Tenderer and the Purchaser, shall be written in English language. Supporting documents and printed literature furnished by the Tenderer may be in another language provided they are accompanied by an accurate translation of the relevant passages in English language in which case, for purposes of interpretation of the Tender, the translation shall govern.

5. Documents Comprising the Tender

5.1 The tender prepared by the Tenderer shall comprise the following components:

(a) A Tender Form and a Price Schedule completed in accordance with ITT Clauses 6, 7 and 8;

(b) Documentary evidence established in accordance with ITT Clause 9 that the Tenderer is eligible to tender and is qualified to perform the contract if its tender is accepted;

(c) Documentary evidence established in accordance with ITT Clause 10 that the goods and ancillary services to be supplied by the Tenderer conform to the tender documents; and

(d) Earnest money deposit furnished in accordance with ITT Clause 11.

6. Tender Form

6.1 The Tenderer shall complete the Tender Form and the Price Schedule furnished in the tender documents, indicating the goods to be supplied, a brief description of the goods, quantity and prices.

7. Tender Prices

7.1 The Tenderer shall indicate on the Price Schedule the unit prices and total tender prices of the goods it proposes to supply under the Contract. To this end, the tenderers are allowed the option to submit the tenders for any one or more schedules specified in the 'Schedule of Requirements' and to offer discounts for combined schedules. However, tenderers shall quote for the complete requirement of goods and services specified under each schedule on a single responsibility basis, failing which such tenders will not be taken into account for evaluation and will not be considered for award.

7.2 Prices indicated on the Price Schedule shall be entered separately in the following manner:

(i) the price of the goods, quoted (ex-works, ex-factory, ex-showroom, ex-warehouse, or off-the-shelf, as applicable), including all duties and GST and other taxes already paid or payable.

a. on components and raw material used in the manufacture or assembly of goods quoted ex-works or ex-factory; or

b. on the previously imported goods of foreign origin quoted ex-showroom, ex-warehouse or off-the shelf.

(ii) any Indian duties, GST and other taxes which will be payable on the goods if this Contract is awarded;

(iii) the price for inland transportation, insurance and other local costs incidental to delivery of the goods to their final destination; and

(iv) the price of other incidental services listed in Clause 4 of the Special Conditions of Contract

7.3 Prices quoted by the Tenderer shall be fixed during the Tenderer's performance of the Contract and not subject to variation on any account. A tender submitted with an adjustable price quotation will be treated as non responsive and rejected, pursuant to ITT Clause 19.

8. Tender Currency

8.1 Prices shall be quoted in INR

9. Documents Establishing Tenderer's Eligibility and Qualifications

9.1 Pursuant to ITT Clause 5, the Tenderer shall furnish, as part of its Tender, documents establishing the Tenderer’s eligibility to tender and its qualifications to perform the Contract if its tender is accepted

9.2 The documentary evidence of the Tenderer's qualifications to perform the Contract if its tender is accepted, shall establish to the Purchaser's satisfaction:

(a) that, in the case of a Tenderer offering to supply goods under the contract which the Tenderer did not manufacture or otherwise produce, the Tenderer has been duly authorized (as per authorization form in Section XIII) by the goods' Manufacturer or producer to supply the goods in India or is a Authorized Dealer of the Goods. (The item or items for which Manufacturer’s Authorization is required should be specified)

(b) that the Tenderer has the financial, technical, and production capability necessary to perform the Contract and meets the criteria outlined in the Qualification requirements specified in Section VII.

10. Documents Establishing Goods' Conformity to Tender Documents

10.1 Pursuant to ITB Clause 5, the Tenderer shall furnish, as part of its tender, documents establishing the conformity to the tender documents of all goods and services which the tenderer proposes to supply under the contract.

10.2 The documentary evidence of conformity of the goods and services to the tender documents may be in the form of literature, drawings and data, and shall consist of:

(a) A detailed description of the essential technical and performance characteristics of the goods;

(b) A list giving full particulars, including available sources and current prices, of spare parts, special tools, etc., necessary for the proper and continuing functioning of the goods for a period of two years, following commencement of the use of the goods by the Purchaser;

11. Earnest Money Deposit

11.1 Pursuant to ITT Clause 5, the Tenderer shall furnish, as part of its tender, earnest money deposit in the amount as specified in Section-V - Schedule of Requirements.

11.2 The earnest money deposit is required to protect the Purchaser against the risk of Tenderer's conduct which would warrant the security's forfeiture, pursuant to ITB Clause 11.7.

11.3 The earnest money deposit shall be denominated in Indian Rupees and shall: (a) at the tenderer's option, be in the form of either a certified check, pay order, a demand draft, from a nationalized/Scheduled Bank located in India; and

(b) remain valid for a period of 45 days beyond the original validity period of tenders, or beyond any period of extension subsequently requested under ITT Clause 12.2.

11.4 Any tender not secured in accordance with ITT Clauses 11.1 and 11.3 above will be rejected by the Purchaser as non-responsive, pursuant to ITT Clause 19.

11.5 Unsuccessful Tenderers tender securities will be discharged/returned as promptly as possible but not later than 30 days after the expiration of the period of tender validity prescribed by the Purchaser, pursuant to ITT Clause 12.

11.6 The successful Tenderer's earnest money deposit will be discharged upon the Tenderer signing the Contract, pursuant to ITT Clause 26, and furnishing the performance security, pursuant to ITT Clause 27.

11.7 The earnest money deposit may be forfeited:

(a) if a Tenderer

(i) withdraws its tender during the period of tender validity specified by the Tenderer on the Tender Form; or

(ii) does not accept the correction of errors pursuant to ITT Clause 19.3; or

(b) in case of a successful Tenderer, if the Tenderer fails:

(i) to sign the Contract in accordance with ITT Clause 26; or

(ii) to furnish performance security in accordance with ITT Clause 27

12. Period of Validity of Tenders

12.1 Tenders shall remain valid for 90 days after the deadline for submission of tenders prescribed by the Purchaser, pursuant to ITB Clause 15. A tender valid for a shorter period shall be rejected by the Purchaser as nonresponsive.

12.2 In exceptional circumstances, the Purchaser may solicit the Tenderer's consent to an extension of the period of validity. The request and the responses thereto shall be made in writing (or by cable or fax). The earnest money deposit provided under ITT Clause 11 shall also be suitably extended. A Tenderer may refuse the request without forfeiting its earnest money deposit. A Tenderer granting the request will not be required nor permitted to modify its tender.

13. Format and Signing of Tender

13.1 The Tenderer shall prepare two copies of the tender, clearly marking each "Original Tender" and "Copy Tender", as appropriate. In the event of any discrepancy between them, the original shall govern. The tender shall be in a Two Cover System, one cover comprising the Technical specifications and another cover comprising the Financial bid. These two covers should include technical bid and financial bid and enclosed in a bigger cover.

13.2 The original and all copies of the tender shall be typed or written in indelible ink and shall be signed by the Tenderer or a person or persons duly authorized to bind the tenderer to the Contract. The latter authorization shall be indicated by written power-of-attorney accompanying the tender. All pages of the tender, except for unamended printed literature, shall be initiated by the person or persons signing the tender.

13.3 Any interlineations, erasures or overwriting shall be valid only if they are initiated by the persons or persons signing the tender.

D. Submission of Tenders

14. Sealing and Marking of Tenders

14.1 The Tenderers shall seal the original and each copy of the tender in separate inner envelopes, duly marking the envelopes as "original" and "copy". The technical bid and the commercial bid should be in separate envelopes. He/She shall then place all the inner envelopes in an outer envelope.

14.2 The inner and outer envelopes shall: (a) be addressed to the Purchaser at the following address: I-Hub For Robotics and Autonomous Systems Innovation Foundation (b) bear the Project Name, the Invitation for Tenders (IFT) title and number

14.3 The inner envelopes shall also indicate the name and address of the Tenderer to enable the tender to be returned unopened in case it is declared "late".

14.4 If the outer envelope is not sealed and marked as required by ITT Clause 14.2, the Purchaser will assume no responsibility for the tender’s misplacement or premature opening.

14.5 Cable or facsimile tenders will be rejected.

15. Deadline for Submission of Tenders

15.1 Tenders must be received by the Purchaser at the address specified under ITT Clause 14.2 (a) no later than the time and date specified in the Invitation for Tenders (Section I). In the event of the specified date for submission of Tenders being declared a holiday for the Purchaser, the Tenders will be received up to the appointed time on the next working day.

15.2 The Purchaser may, at its discretion, extend this deadline for submission of tenders by amending the tender documents in accordance with ITT Clause 3, in which case all rights and obligations of the Purchaser and Tenderers previously subject to the deadline will thereafter be subject to the deadline as extended.

16. Late Tenders

16.1 Any tender received by the Purchaser after the deadline for submission of tenders prescribed by the Purchaser, pursuant to ITT Clause 15, will be rejected and/or returned unopened to the Tenderer.

17. Modification and Withdrawal of Tenders

17.1 The Tenderer may modify or withdraw its tender after the tender's submission, provided that written notice of the modification or withdrawal is received by the Purchaser prior to the deadline prescribed for submission of tenders.

17.2 The Tenderer's modification or withdrawal notice shall be prepared, sealed, marked and dispatched in accordance with the provisions of ITT Clause 14. A withdrawal notice may also be sent by telex or cable or fax but followed by a signed confirmation copy, post marked not later than the deadline for submission of tenders.

17.3 No tender may be modified subsequent to the deadline for submission of tenders.

17.4 No tender may be withdrawn in the interval between the deadline for submission of tenders and the expiration of the period of tender validity specified by the Tenderer on the Tender Form. Withdrawal of a tender during this interval may result in the Tenderer's forfeiture of its earnest money deposit, pursuant to ITT Clause 11.7.

E. Tender Opening and Evaluation of Tenders

18. Opening of Tenders by the Purchaser

18.1 The Purchaser will open technical bid, in the presence of Tenderers' representatives who choose to attend, at Office, ARTPARK and in the following location: I-Hub for Robotics and Autonomous Systems Innovation Foundation, Ground Floor, SID Entrepreneurship Building, Indian Institute of Science, Bengaluru - 560012. The commercial bid will be opened only for technically qualifying members at a date/time which will be promulgated on the day of opening technical bid. The Tenderers' representatives who are present shall sign a register evidencing their attendance for technical bid as well as commercial bid opening. In the event of the specified date of Tender opening being declared a holiday for the Purchaser, the tenders shall be opened at the appointed time and location on the next working day.

18.2 The Tenderers' names, tender modifications or withdrawals, tender prices, discounts, and the presence or absence of requisite tender security and such other details as the Purchaser, at its discretion, may consider appropriate, will be announced at the opening. No tender shall be rejected at tender opening, except for late tenders, which shall be returned unopened to the Tenderer pursuant to ITT Clause 16.

18.3 Tenders (and modifications sent pursuant to ITT Clause 17.2) that are not opened and read out at tender opening shall not be considered further for evaluation, irrespective of the circumstances.

18.4 The Purchaser will prepare minutes of the tender opening.

19. Preliminary Examination

19.1 The Purchaser will examine the tenders to determine whether they are complete, whether any computational errors have been made, whether required sureties have been furnished, whether the documents have been properly signed, and whether the tenders are generally in order. Tenders from Agents/Authorized Dealers, without proper authorization from the manufacturer as per Section XIII, shall be treated as nonresponsive.

19.2 Where the Tenderer has quoted for more than one schedule, if the earnest money deposit furnished is inadequate for all the schedules, the Purchaser shall take the price tender into account only to the extent the tender is secured. For this purpose, the extent to which the tender is secured shall be determined by evaluating the requirement of earnest money deposit to be furnished for the schedule included in the tender (offer) in the serial order of the Schedule of Requirements of the Tender document.

19.3 Arithmetical errors will be rectified on the following basis. If there is a discrepancy between the unit price and the total price that is obtained by multiplying the unit price and quantity, the unit price shall prevail and the total price shall be corrected. If there is a discrepancy between words and figures, the lower of the two will prevail. If the supplier does not accept the correction of errors, its tender will be rejected and its earnest money deposit may be forfeited.

19.4 The Purchaser may waive any minor informality or non-conformity or irregularity in a tender which does not constitute a material deviation, provided such a waiver does not prejudice or affect the relative ranking of any Tenderer.

19.5 Prior to the detailed evaluation, pursuant to ITT Clause 20, the Purchaser will determine the substantial responsiveness of each tender to the tender documents. For purposes of these Clauses, a substantially responsive tender is one which conforms to all the terms and conditions of the tender documents without material deviations. Deviations from or objections or reservations to critical provisions such as those concerning Performance

Security (GCC Clause 4). Warranty (GCC Clause 12), Applicable law (GCC Clause 19), and Taxes & Duties (GCC Clause 21) will be deemed to be a material deviation. The Purchaser's determination of a tender's responsiveness is to be based on the contents of the tender itself without recourse to extrinsic evidence.

19.6 If a tender is not substantially responsive, it will be rejected by the Purchaser and may not subsequently be made responsive by the Tenderer by correction of the non-conformity.

20. Evaluation and Comparison of Tenders

20.1 The Purchaser will evaluate and compare the tenders which have been determined to be substantially responsive, pursuant to ITT Clause 7 for each schedule separately. No tender will be considered if the complete requirements covered in the schedule are not included in the tender. However, as stated in ITT Clause 7, Tenderers are allowed the option to tender for any one or more schedules and to offer discounts for combined schedules. These discounts will be taken into account in the evaluation of the tenders so as to determine the tender or combination of tenders offering the lowest evaluated cost for the Purchaser in deciding award(s) for each schedule.

20.2 The Purchaser's evaluation of a tender will take into account in the case of goods manufactured in India or goods of foreign origin already located in India, sales and other similar taxes, which will be payable on the goods if a contract is awarded to the Tenderer;

20.3 The Purchaser's evaluation of a tender will take into account, in addition to the tender price (Ex-factory/ex-warehouse/off-the-shelf price of the goods, such price to include all costs as well as duties and taxes paid or payable on components and raw material incorporated or to be incorporated in the goods, and Excise duty on the finished goods, if payable) and price of incidental services, the following factors, in the manner and to the extent indicated in ITT Clause 20.4 and in the Technical Specifications:

(a) cost of inland transportation, insurance and other costs within India incidental to the delivery of the goods to their final destination

(b) the cost of components, mandatory spare parts and service;

20.4 Pursuant to ITT Clause 20.3, one or more of the following evaluation methods will be applied:

(a) Inland Transportation, Insurance and Incidentals:

(i) Inland transportation, insurance and other incidentals for delivery of goods to the final destination as stated in ITT Clause 7.2

(ii). The above costs will be added to the tender price.

(b) Cost of Components, mandatory Spare Parts and Services: (i) Technical Specifications should list the items and quantities of major assemblies, components and selected items of spare parts, likely to be required during the initial 3 year period of operation of the equipment. The total cost of these items and quantities at the unit prices quoted in each bid will be added to the tender price.

F. Award of Contract

21. Post Qualification

21.1 The Purchaser will determine to its satisfaction whether the Tenderer that is selected as having submitted the lowest evaluated responsive tender meets the criteria specified in ITT Clause 9.2 (b) and is qualified to perform the contract satisfactorily.

21.2 The determination will take into account the Tenderer's financial, technical and production capabilities. It will be based upon an examination of the documentary evidence of the Tenderer's qualifications submitted by the Tenderer, pursuant to ITT Clause 9, as well as such other information as the Purchaser deems necessary and appropriate.

21.3 An affirmative determination will be a prerequisite for award of the Contract to the Tenderer. A negative determination will result in rejection of the Tenderer's tender, in which event the Purchaser will proceed to the next lowest evaluated tender to make a similar determination of that Tenderer's capabilities to perform the contract satisfactorily.

22. Award Criteria

22.1 Subject to ITT Clause 24, the Purchaser will award the Contract to the successful Tenderer whose tender has been determined to be substantially responsive, technically qualified and has been determined as the lowest evaluated tender (duly justified internally within I-HUB FOR ROBOTICS AND AUTONOMOUS SYSTEMS INNOVATION FOUNDATION if not lowest), provided further that the Tenderer is determined to be technically qualified,substantially responsive to the Tender documents and who has offered the lowest evaluated Tender Price. The technical evaluation has a two stage process – first is via the documents provided in the technical bid, and second is with the evaluation of the demonstrations, the technically qualified bidders will be considered for opening of the financial bids provided that such Bidder has been determined to be eligible in accordance with the provisions of this tender document (along with technical demonstrations) and subsequent technical clarifications offered by the responsive bidders

23. Purchaser's right to vary Quantities at Time of Award

23.1 The Purchaser reserves the right at the time of Contract award to increase by up to 100 percent of the quantity of goods and services originally specified in the Schedule of

Requirements as Repeat Order without any change in unit price or other terms and conditions (exclusive of prevailing GST).

24. Purchaser's Right to Accept Any Tender and to Reject Any or All Tenders

24.1 The Purchaser reserves the right to accept or reject any tender, and to annul the tendering process and reject all tenders at any time prior to contract award, without thereby incurring any liability to the affected Tenderer or Tenderers of the grounds for the I-HUB FOR ROBOTICS AND AUTONOMOUS SYSTEMS INNOVATION FOUNDATION's action. In the event of tender cancellation, the earnest money deposited will be returned.

25. Notification of Award

25.1 Prior to the expiration of the period of tender validity, the Purchaser will notify the successful tenderer in writing by registered letter or by cable/telex or fax, to be confirmed in writing by registered letter, that its tender has been accepted.

25.2 The notification of award will constitute the formation of the Contract.

25.3 Upon the successful Tenderer's furnishing of performance security pursuant to ITT Clause 27, the Purchaser will promptly notify the name of the winning Tenderer to each unsuccessful Tenderer and will discharge its earnest money deposit, pursuant to ITT Clause 11.

25.4 If, after notification of award, a Tenderer wishes to ascertain the grounds on which its tender was not selected, it should address it's request to the Purchaser. The Purchaser will promptly respond in writing to the unsuccessful Tenderer.

26. Signing of Contract

26.1 At the same time as the Purchaser notifies the successful tenderer that its tender has been accepted, the Purchaser will send the Tenderer the Contract Form provided in the tender documents, incorporating all agreements between the parties.

26..2 Within 21 days of receipt of the Contract Form, the successful Tenderer shall sign and date the Contract and return it to the Purchaser.

27. Performance Security

27.1 The successful Tenderer shall furnish the performance security in accordance with the Conditions of Contract, in the Performance Security Form provided in the tender documents or in another form acceptable to the Purchaser. The EMD will be replaced with Performance Bank Guarantee of 5% of Contract value at the time of signing Contract. The PBG will cover the period of all obligations from the supplier (Warranty, AMC, etc).

27.2 Failure of the successful Tenderer to comply with the requirement of ITT Clause 26.2 or ITT Clause 27.1 shall constitute sufficient grounds for the annulment of the award and forfeiture of the earnest money deposit, in which event the Purchaser may make the award to the next lowest evaluated Tenderer or call for new tenders.

SECTION III: GENERAL CONDITIONS OF CONTRACT

General Conditions of Contract

1. Definitions

1.1 In this Contract, the following terms shall be interpreted as indicated:

(a) "The Contract" means the agreement entered into between the Purchaser and the Supplier, as recorded in the Contract Form signed by the parties, including all the attachments and appendices thereto and all documents incorporated by reference therein;

(b) "The Contract Price" means the price payable to the Supplier under the Contract for the full and proper performance of its contractual obligations;

(c) "The Goods" means all the equipment, machinery, and/or other materials which the Supplier is required to supply to the Purchaser under the Contract;

(d) "Services" means services ancillary to the supply of the Goods, such as transportation and insurance, and any other incidental services, such as installation, commissioning, provision of technical assistance, training and other obligations of the Supplier covered under the Contract;

(e) “GCC” means the General Conditions of Contract contained in this section. (f) “SCC” means the Special Conditions of Contract.

(g) “The Purchaser” means the organization purchasing the Goods, as named in SCC.

(h) “The Supplier” means the individual or firm supplying the Goods and Services under this Contract

(k) “The Project Site”, where applicable, means the place or places named in SCC. (l) “Day” means calendar day.

2. Application

2.1 These General Conditions shall apply to the extent that they are not superseded by provisions in other parts of the Contract.

3. Standards

3.1 The Goods supplied under this Contract shall conform to the standards mentioned in the Technical Specifications, and, when no applicable standard is mentioned, to the authoritative standard appropriate to the Goods' country of origin and such standards shall be the latest issued by the concerned institution.

4. Performance Security

4.1 Within 21 days of receipt of the notification of contract award, the Supplier shall furnish Performance Security to the Purchaser for an amount of 5% of the Contract Value, valid up to 60 days after the date of completion of performance obligations including Warranty obligations. In the event of any correction of defects or replacement of defective material during the Warranty period, the Warranty for the corrected/replaced material shall be extended to a further period of 12 months and the Performance Bank Guarantee for proportionate value shall be extended 60 days over and above the initial Warranty period

4.2 The proceeds of the performance security shall be payable to the Purchaser as compensation for any loss resulting from the Supplier's failure to complete its obligations under the Contract.

4.3 The Performance Security shall be denominated in Indian Rupees and shall be in one of the following forms:

(a) A Bank guarantee, issued by a nationalized/scheduled bank in the form provided in the tender documents or another form acceptable to the Purchaser; or

(b) A cashier's check or Banker’s certified check, or crossed demand draft or pay order drawn in favour of the Purchaser.; or

4.4 The Performance Security will be discharged by the Purchaser and returned to the Supplier not later than 60 days following the date of completion of the Supplier's performance obligations, including any Warranty obligations, under the Contract.

4.5 In the event of any contract amendment, the Supplier shall, within 20 days of receipt of such amendment, furnish the amendment to the Performance Security, rendering the same valid for the duration of the Contract as amended for 60 days after the completion of performance obligations including Warranty obligations.

5. Inspections and Tests

5.1 The Purchaser or its representative shall have the right to inspect and/or to test the Goods to confirm their conformity to the Contract specifications at no extra cost to the Purchaser. SCC and the Technical Specifications shall specify what inspections and tests the Purchaser requires and where they are to be conducted. The Purchaser shall notify the Supplier in writing in a timely manner of the identity of any representatives retained for these purposes.

5.2 Should any inspected or tested Goods fail to conform to the specifications, the Purchaser may reject the goods and the Supplier shall either replace the rejected Goods or make alterations necessary to meet specification requirements free of cost to the Purchaser.

5.3 Nothing in GCC Clause 5 shall in any way release the Supplier from any warranty or other obligations under this Contract.

6. Packing

6.1 The Supplier shall provide such packing of the Goods as is required to prevent their damage or deterioration during transit to their final destination as indicated in the Contract. The packing shall be sufficient to withstand, without limitation, rough handling during transit and exposure to extreme temperatures, salt and precipitation during transit and open storage.

7. Delivery and Documents

7.1 Delivery of the Goods shall be made by the Supplier in accordance with the terms specified by the Purchaser in the Notification of Award along with supporting documents.

8. Insurance

8.1 The Goods supplied under the Contract shall be fully insured against loss or damage during transportation, storage and delivery.

9. Transportation

9.1 Where the Supplier is required under the Contract to transport the Goods to a specified place of destination within the State defined as Project site, transport to such place of destination including insurance, as shall be specified in the Contract, shall be arranged by the Supplier, and the related cost shall be included in the Contract Price

10. Incidental Services

10.1 The supplier may be required to provide any or all of the following services, including additional services, if any, specified in SCC:

(a) performance or supervision of the on-site assembly and/or start-up of the supplied Goods;

(b) furnishing of tools required for assembly and/or maintenance of the supplied Goods;

(c) furnishing of detailed operations and maintenance manual for each appropriate unit of supplied Goods;

(d) performance or supervision or maintenance and/or repair of the supplied Goods, for a period of time agreed by the parties, provided that this service shall not relieve the Supplier of any warranty obligations under this Contract; and

(e) training of the Purchaser's personnel, at the Supplier's plant and/or on-site, in assembly, start-up, operation, maintenance and/or repair of the supplied Goods.

10.2 Prices charged by the Supplier for incidental services, shall be included in the Contract Price for the Goods.

11. Spare Parts

11.1 As specified in the SCC, the Supplier may be required to provide , notifications, and information pertaining to spare parts manufactured or distributed by the Supplier, such spare parts as the Purchaser may elect to purchase from the Supplier, providing that this election shall not relieve the Supplier of any warranty obligations under the Contract; and

11.2 The Supplier shall carry sufficient inventories to assure ex-stock supply of consumable spares for the Goods. Other spare parts and components shall be supplied as promptly as possible but in any case within 3 months of placement of order.

12. Warranty and AMC

12.1 The Supplier warrants that the Goods supplied under this Contract are new, unused, or the most recent or current models and that they incorporate all recent improvements in design and materials unless provided otherwise in the Contract. The Supplier further warrants that all Goods supplied under this Contract shall have no defect arising from design, materials or workmanship or from any act or omission of the Supplier, that may develop under normal use of the supplied Goods in the conditions prevailing in the State. The Supplier will also undertake maintenance of the goods through AMC of one year from the date without any additional cost.

13. Payment

13.1 The method and conditions of payment to be made to the Supplier under this Contract shall be specified in the SCC.

13.2 The Supplier's request(s) for payment shall be made to the Purchaser in writing, accompanied by an invoice describing, as appropriate, the Goods delivered and the Services performed, and by documents, submitted pursuant to GCC Clause 7, and upon fulfillment of other obligations stipulated in the contract.

13.3 Payments shall be made promptly by the Purchaser but in no case later than thirty (30) days after submission of the invoice or claim by the Supplier.

13.4 Payment shall be made in Indian Rupees.

14. Prices

14.1 Prices payable to the supplier as stated in the contract shall be firm during the performance of the contract.

15. Contract Amendments

15.1 No variation in or modification of the terms of the Contract shall be made except by written amendment signed by the parties.

16. Delays in the Supplier's Performance

16.1 Delivery of the Goods and performance of the Services shall be made by the Supplier in accordance with the time schedule specified by the Purchaser in the Schedule of Requirements.

16.2 If at any time during performance of the Contract, the Supplier or its subcontractor(s) should encounter conditions impeding timely delivery of the Goods and performance of Services, the Supplier shall promptly notify the Purchaser in writing of the fact of the delay, its likely duration and its cause(s). As soon as practicable after receipt of the Supplier's notice, the Purchaser shall evaluate the situation and may, at its discretion, extend the Supplier's time for performance with or without liquidated damages, in which case the extension shall be ratified by the parties by amendment of the Contract.

16.3 A delay by the Supplier in the performance of its delivery obligations shall render the Supplier liable to the imposition of liquidated damages pursuant to GCC Clause 17, unless an extension of time is agreed upon pursuant to GCC Clause 16.2 without the application of liquidated damages.

17. Liquidated Damages

17.1 If the Supplier fails to deliver any or all of the Goods or to perform the Services within the period(s) specified in the Contract, the Purchaser shall, without prejudice to its other remedies under the Contract, deduct from the Contract Price, as liquidated damages, a sum equivalent to 0.5% of the delivered price of the delayed Goods or unperformed Services for each week or part thereof of delay until actual delivery or performance, up to a maximum deduction of 10% of the Contract Price. Once the maximum is reached, the Purchaser may consider termination of the Contract pursuant to GCC Clause 18.

18. Termination for Default

18.1 The Purchaser may, without prejudice to any other remedy for breach of contract, by written notice of default sent to the Supplier, terminate the Contract in whole or part:

(a) if the Supplier fails to deliver any or all of the Goods within the period(s) specified in the Contract, or within any extension thereof granted by the Purchaser pursuant to GCC Clause 16; or

(b) if the Supplier fails to perform any other obligation(s) under the Contract. (c) If the Supplier, in the judgment of the Purchaser, has engaged in corrupt or fraudulent practices in competing for or in executing the Contract.

18.2 In the event the Purchaser terminates the Contract in whole or in part, pursuant to GCC Clause 18.1, the Purchaser may procure, upon such terms and in such manner as it deems appropriate, Goods or Services similar to those undelivered, and the Supplier shall be liable to the Purchaser for any excess costs for such similar Goods or Services. However, the Supplier shall continue the performance of the Contract to the extent not terminated.

Corrupt or Fraudulent practices 9 The I-HUB FOR ROBOTICS AND AUTONOMOUS SYSTEMS INNOVATION FOUNDATION requires that the Bidders observe the highest standard of ethics during the procurement and execution of such contracts. In pursuance of this policy, I-HUB FOR ROBOTICS AND AUTONOMOUS SYSTEMS INNOVATION FOUNDATION. a) will reject a proposal for award if it determines that the Bidder recommended for award has engaged in corrupt or fraudulent practices in competing for the contract in question. b) will declare a firm ineligible, either indefinitely or for a stated period of time, to be awarded a I-HUB FOR ROBOTICS AND AUTONOMOUS SYSTEMS INNOVATION FOUNDATION contract if it at any time determines that the firm has engaged in corrupt or fraudulent practices in competing for, or in executing, a I-HUB FOR ROBOTICS AND AUTONOMOUS SYSTEMS INNOVATION FOUNDATION contract.

19. Applicable Law

19.1 The Contract shall be interpreted in accordance with the laws of the Union of India.

20. Notices

20.1 Any notice given by one party to the other pursuant to this Contract shall be sent to the other party in writing or by cable, or facsimile and confirmed in writing to the other Party’s address specified in SCC.

20.2 A notice shall be effective when delivered or on the notice's effective date, whichever is later.

21. Taxes and Duties

21.1 Suppliers shall be entirely responsible for all taxes (including GST), duties, license fees, octroi, road permits, etc., incurred until delivery of the contracted Goods to the Purchaser.

SECTION IV:SPECIAL CONDITIONS OF CONTRACT

Special Conditions of Contract

The following Special Conditions of Contract shall supplement the General Conditions of Contract. Whenever there is a conflict, the provisions herein shall prevail over those in the General Conditions of Contract. The corresponding clause number of the General Conditions is indicated in parentheses.

1. Definitions (GCC Clause 1)

(a) The Purchaser is I-HUB FOR ROBOTICS AND AUTONOMOUS SYSTEMS INNOVATION FOUNDATION, IISc, Bengaluru.

(b) The Supplier is .....

2. Inspection and Tests (GCC Clause 5)

The following inspection procedures and tests are required by the Purchaser:

1. visual inspection for physical damage
2. Successful installation and commissioning certificate.
3. Printing Sample parts.
4. checking for part accuracy (within tolerance)

3. Delivery and Documents (GCC Clause 7)

Upon delivery of the Goods, the supplier shall furnish to the Purchaser the following documents:

(i) One Original and two Copies of the Supplier invoice showing contract number, goods' description, quantity, unit price, total amount;

(iii) One Original and two Copies of packing list identifying the contents of each package;

(iv) Insurance Certificate;

(v) Manufacturer's/Supplier's warranty certificate;

(vi) Inspection Certificate issued by the nominated inspection agency, and the Supplier's factory inspection report; and

4. Incidental Services (GCC Clause 10)

The following services covered under Clause 10 shall be furnished and the cost shall be included in the contract price:

_____
_____
_____

5. Payment (GCC Clause 13)

(i) On Delivery: Hundred percent of the contract price shall be paid on receipt of Goods and establishing that the supplied goods broadly conform to the number and specifications of the ordered goods, and further upon submission of the documents specified in SCC Clause 3 above; and

(ii) On Final Acceptance: the remaining twenty percent of the Contract Price shall be paid to the supplier within 30 days after the date of the acceptance certificate issued by the Purchaser's representative for the respective delivery

6. Notices (Clause 20)

For the purpose of all notices, the following shall be the address of the Purchaser and Supplier.

Purchaser: I-HUB FOR ROBOTICS AND AUTONOMOUS SYSTEMS INNOVATION FOUNDATION, IISc, Ground Floor, SID Entrepreneurship Building, Indian Institute of Science, Bengaluru - 560012. Ph - 7338164938.

Supplier: (To be filled in at the time of Contract signature) ....

SECTION V: SCHEDULE OF REQUIREMENTS

(To be inserted in the Tender Documents by the Purchaser, as applicable. The Schedule should cover, at a minimum, the required items, quantities, services, delivery period(s) and earnest money deposit (EMD).)

Part - I

Sl.No	Brief Description	Unit	Quantity	Delivery schedule	EMD in INR
1.	GPU-EDGE-CLOUD-SYSTEM	1 Nos			

The specifications for the Robotic Arms are detailed below (Annexure I):

Section VI: Technical Specifications

	Component	Description
1		The GPU-EDGE-CLOUD-SYSTEM will consist of a GPU Server (with 8x NVIDIA H200 GPU), a high performance switch fabric, a high performance flash based storage server and any other ancillaries (racks, cables, UPS, batteries, cooling etc) needed to get the GPU-EDGE-CLOUD-SYSTEM up and running smoothly.
2		The system configuration should allow adding new compute servers in the future.
3		Training for general System administration with adequate documentation including tasks such as user/node management and installation/upgrade, should be provided by the OEM/Bidder.
4		The entire solution must be offered with 3 Years comprehensive Onsite support with next business day response and Hard disk Media Retention.
5		The Storage Server and GPU Server OEM should be same to ensure that customer has a seamless integration of the solution and support.
6		Proposed solution should also cover any Civil/Infrastructure work needed to accommodate the edge-cloud system
7		Proposed solution should cover cooling as well as UPS
GPU Server		
8	Chipset	Dual x86_64 latest generation processors with minimum of 48 Cores/CPU

9	Form Factor	Maximum of 6U rack
10	Memory slots	At least 32x DDR5 DIMM slots, speeds up to 5600 MT/s
11	Memory configured	Should be configured with at least 2TB RAM with 5600MT/s with ECC in fully balanced mode
12	Disks supported	Up to 8 x 2.5-inch SAS/SATA/NVMe (HDD/SSD) drives
13	OS Storage	minimum 2 x 1.92GB NVME with Hardware RAID
14	Disks configured	at least 4 nos of 3.84TB NVMe drives
15	I/O slots	Minimum 8x PCIe Gen 5.0 slots.
16	GPUs	8 NVIDIA H200 141GB (SXM)
17	Power Supply	Minimum N+2 Titanium power supply with comsumptin of upto 10.5KW. Each unit should have min of 3k W (200—240 VAC or 240 HVDC)
18	Network /Interonnect Fabric	At least 1 dual port 10/25 GE Adapter , 1 embedded dual port 10G Base T adapter, at least 4 port 400G Adapter (like NDR) and 2 USB ports.
19	Management software	System monitoring and management software with local and remote management (include licenses if needed). Support security features like root of trust
20	Operating system	Latest versions of Ubuntu 22.04 and/or RHEL. Should have enterprise support from OEM
21	Software and Libraries	AI training, inference, HPC libraries - open source preferred. Indicate licensing if required.
22	Warranty	3 years On-site comprehensive warranty with 24x7x365 support with next business day response and hard disk media retention
23	Ancillaries	Racks, cables, cooling, UPS, Battery (at least 15min) etc as needed to get the system deployed and operational.
HPC Switch (like Infiniband NDR switch)		

24	Managed Switch (e.g.)	Qty as per solution
25	Form Factor	2U or less
26	Ports	minimum 64 X with 400Gbps/port - e.g. Infiniband NDR
27	Performance	Aggregate throughput of at least 50Tbps bidirectional
28	Management ports	100/1000 Ethernet, USB 3.0
29	Connectors/Cabling	Transceivers/Cab;es of type and length and all accessories as needed for the solution deployment
30	Power Supply	Dual redundant power supply with hotplug
31	OS	presinstalled, certified OS with perpetual license
Storage		
32	File System	Parallel distributed file system (like Lustre). Storage appliance should be directly supported by Storage OEM. Solutions with discrete IO Nodes and external storage will not be allowed
33	Disk Capacity	At least 250TB of useable capacity using NVMe SSDs only. Advanced data protection methods in the RAID solution. Should tolerate simultaneous failure of any two disks in a single RAID group. The capacity should be extensible to 500TB.
34	Performance	Minimum of 60GB/s Read/Write independently. Transfer size of 1MB/4MB/16MB
35	Storage controller	Bare metal implementation for high performance
36	Network interface	Native high bandwidth interface to HPC switch (e.g. at least 200Gbps NDR ports)
37	Redundancy	Dual controllers
38	Factory integration	Must be integrated in factory and tested before shipping to our location..

Warranty and AMC

1. Comprehensive onsite warranty and AMC from the Date of Installation plus 3 years. 4th and 5th year warranty to be quoted separately
2. During the warranty period, any defective parts should be replaced free of cost
3. Software upgrades if any should be supplied free of cost during Warranty period

General Terms & Conditions

1. Installation and commissioning of the system should be done by the supplier
2. Onsite training on Machine and maintenance to be provided by supplier at the time of installation
3. The supplier/ OEM should have a registered office in India for supply & support of Robotic Arms (Company profile to be supported along with the bid along with self-declaration). Supplier/OEM should have a service office in Bengaluru.
4. The OEM should have a Main/Demo/Technical office in Bengaluru
5. The supplier should have an authorization letter from the OEM for supplying the machine.
6. The service engineers should be certified by the OEM.
7. The Supplier / OEM need to submit the details of similar machines supplied to the Education Institutes / Govt. / PSU's and renowned manufacturers in India and should enclose evidence for the same.
8. The machine models / brands offered should have successful installations in India.

Schedule II

Part – II (Incidental Services) **

From the Date of contract Award

* The Purchaser must specify here the date from which the date of delivery schedule will start. That date should be either the date of contract award, or the date of contract signature, as appropriate. The Tender Form should include only a cross reference to this Schedule.

** Specify the required Incidental Services.

SECTION VII : QUALIFICATION CRITERIA

(Referred to in Clause 9.2 (b) of ITT)

1. (a) The tenderer should be a manufacturer who must have manufactured, tested and supplied the equipment (s) similar to the type specified in the 'Schedule of Requirements' up to at least 80 % of the quantity required in any one of the last 3 years. The equipment offered for supply must be of the most recent series models incorporating the latest improvements in design. The models should have been released on or after 2018 and be in satisfactory operation for minimum 12 months as on date of tender opening.

(b) Tenders of tenderers quoting as authorized representative/dealer of a manufacturer, meeting with the above requirement in full, can also be considered provided :

(i) the manufacturer furnishes authorization in the prescribed format assuring full guarantee and warranty obligations as per GCC and SCC; and

(ii) the tenderer, as authorized representative/dealer, has supplied, installed and commissioned satisfactorily at least 60 % of the quantity similar to the type specified in the Schedule of Requirements in any one of the last three years which must be in satisfactory operation for at least 12 months on the date of tender opening.

2. The tenderer should furnish information on all past supplies and satisfactory performance for both (a) and (b) above, in proforma under Section XII.

SECTION VIII: TENDER FORM

IFT No :.....

Date :.....

TO: (Name and address of purchaser)

Gentlemen:

Having examined the Tender Documents including Addenda Nos..... [insert numbers], the receipt of which is hereby duly acknowledged, we, the undersigned, offer to supply and deliver..... (Description of Goods and Services) in conformity with the said tender documents for the sum of ..... (Total tender amount in words and figures) or such other sums as may be ascertained in accordance with the Schedule of Prices attached herewith and made part of this tender.

We undertake, if our tender is accepted, to deliver the goods in accordance with the delivery schedule specified in the Schedule of Requirements.

If our tender is accepted, we will obtain the guarantee of a bank in a sum equivalent to ..... percent of the Contract Price for the due performance of the Contract, in the form prescribed by the Purchaser.

We agree to abide by this tender for the Tender validity period specified in Clause 12.1 of the ITT and it shall remain binding upon us and may be accepted at any time before the expiration of that period.

Until a formal contract is prepared and executed, this tender, together with your written acceptance thereof and your notification of award, shall constitute a binding Contract between us.

We undertake that, in competing for (and, if the award is made to us, in executing) the above contract, we will strictly observe the laws against fraud and corruption in force in India. We understand that you are not bound to accept the lowest or any tender you may receive.

We clarify/confirm that we comply with the eligibility requirements as per ITT Clause 1 of the tender documents.

Dated this ..... day of 2023

_____

(signature)

(in the capacity of)

Duly authorized to sign Tender for and on behalf of _____

Annexure II

PRICE SCHEDULE

Schedule No	Item Description	Quantity and unit	Price for each unit					Total price
			Ex factory/ex warehouse /ex showroom /off the shelf	Excise duty, if any	Inland transportation insurance and other local costs incidental to delivery	GST and other taxes payable if contract awarded	Unit price (4+5+6+7)	
1	2	3	4	5	6	7	8	9

Note: In case of discrepancy between unit price and total price, the unit price will prevail

Total tender price in Rs(words) …….. …….

Signature of Tenderer ……

Name and address: ……

SECTION X: CONTRACT FORM

THIS AGREEMENT made the .....day of....., 20... Between ..... (Name of purchaser) of ..... (Country of Purchaser) (hereinafter called "the Purchaser") of the one part and ..... (Name of Supplier) of ..... (City and Country of Supplier) (hereinafter called "the Supplier") of the other part :

WHEREAS the Purchaser is desirous that certain Goods and ancillary services viz., ... (Brief Description of Goods and Services) and has accepted a tender by the Supplier for the supply of those goods and services in the sum of ..... (Contract Price in Words and Figures) (hereinafter called "the Contract Price").

NOW THIS AGREEMENT WITNESSETH AS FOLLOWS:

1. In this Agreement words and expressions shall have the same meanings as are respectively assigned to them in the Conditions of Contract referred to.

2. The following documents shall be deemed to form and be read and construed as part of this Agreement, viz.:

(a) the Tender Form and the Price Schedule submitted by the Tenderer;

(b) the Schedule of Requirements;

(c) the Technical Specifications;

(d) the General Conditions of Contract;

(e) the Special Conditions of Contract; and

(f) the Purchaser's Notification of Award.

3. In consideration of the payments to be made by the Purchaser to the Supplier as hereinafter mentioned, the Supplier hereby covenants with the Purchaser to provide the goods and services and to remedy defects therein in conformity in all respects with the provisions of the Contract.

4. The Purchaser hereby covenants to pay the Supplier in consideration of the provision of the goods and services and the remedying of defects therein, the Contract Price or such other sum as may become payable under the provisions of the Contract at the times and in the manner prescribed by the Contract. Brief particulars of the goods and services which shall be supplied/provided by the Supplier are as under:

Sl.no	Brief description of	Quantity to be supplied	Unit price	Total price	Delivery terms

	goods and services				

_____ TOTAL VALUE:

DELIVERY SCHEDULE:

IN WITNESS whereof the parties hereto have caused this Agreement to be executed in accordance with their respective laws the day and year first above written.

Signed, Sealed and Delivered by the said ..... (For the Purchaser)

in the presence of:.....

Signed, Sealed and Delivered by the said ..... (For the Supplier) in the presence of:.....

SECTION XI. PERFORMANCE SECURITY FORM

To:

(Name of Purchaser)

WHEREAS ..... (Name of Supplier) hereinafter called "the Supplier" has undertaken , in pursuance of Contract No..... dated,..... 20... to supply..... .....(Description of Goods and Services) hereinafter called "the Contract".

AND WHEREAS it has been stipulated by you in the said Contract that the Supplier shall furnish you with a Bank Guarantee by a recognized bank for the sum specified therein as security for compliance with the Supplier's performance obligations in accordance with the Contract. AND WHEREAS we have agreed to give the Supplier a Guarantee:

THEREFORE WE hereby affirm that we are Guarantors and responsible to you, on behalf of the Supplier, up to a total of .... (Amount of the Guarantee in Words and Figures) and we undertake to pay you, upon your first written demand declaring the Supplier to be in default under the Contract and without cavil or argument, any sum or sums within the limit of ..... (Amount of Guarantee) as aforesaid, without your needing to prove or to show grounds or reasons for your demand or the sum specified therein.

This guarantee is valid until the .....day of.....20.....

Signature and Seal of Guarantors ....

Date.....20....

Address:..... ....

I-HUB FOR ROBOTICS AND AUTONOMOUS SYSTEMS INNOVATION FOUNDATION

SECTION XII

(Please see Clause 9.2 (b) of the Instructions to Tenders)

Proforma for Performance Statement for the last three years

IFT No……. Date of Opening……. Time …… Hours

Name of the Firm: ……..

Orders placed by (Full address of purchaser)	Order No.& Date	Description and quantity of goods ordered	Value of order	Date of completion of delivery as per contract/Actual dates of completion	Remarks indicating reasons for late delivery, if any	Has the goods/equipment been satisfactorily functioning. (Attach a certificate from the purchaser
1	2	3	4	5	6	7

Signature and Seal of the Tenderer:----------

I-HUB FOR ROBOTICS AND AUTONOMOUS SYSTEMS INNOVATION FOUNDATION

SECTION XIII:- MANUFACTURERS' AUTHORIZATION FORM*

(Please see Clause 9.2 (a) of Instructions to Tenderers)

No. dated

To

Dear Sir:

IFT No.

We…… who are established and reputable manufacturers of (name and description of goods offered) having factories at……. (address of factory) do state that:

(a) M/s…… (Name and address of Agent) is hereby authorized to submit a tender, and sign the contract with you for the goods manufactured by us against the above IFT; OR

(b) M/s ----------(Name and address of the Authorized Dealer) is our accredited/authorized Dealer

We hereby extend our full guarantee and warranty as per Clause 12 of the General Conditions of Contract for the goods and services offered for supply by the above firm against this IFT.

Yours faithfully,

(Name)

(Name of manufacturers)

Note: This letter of authority should be on the letterhead of the manufacturer and should be signed by a person competent and having the power of attorney to legally bind the manufacturer. It should be included by the Tenderer in its tender.